

KMVTECH EDUCATION**IPL1 · Module 4****Trade marks registration**

Lesson: Registration system

Student Lesson Notes

Study with the online lessons. Prefer primary sources (Constitution, statutes, treaties, cases). © KMVTECH Education · September 2026.

1. CORE IDEA

A trade mark is a sign capable of distinguishing the goods or services of one undertaking from those of others. It may consist of words, logos, shapes, colours, sounds or combinations, provided it is distinctive and not excluded.

Registration at URSB confers nationwide exclusive rights for the registered goods/services. Absolute grounds (descriptiveness, lack of distinctiveness, public policy) and relative grounds (conflict with earlier marks) can block registration.

The application process includes examination, publication and opposition. Term is renewable indefinitely upon payment of fees, provided the mark remains in use and distinctive.

- Unregistered marks may still receive protection through the tort of passing off if goodwill, misrepresentation and damage are shown.

2. DETAILED RULES AND APPLICATION

Example: a coined word for a soft drink is easily registrable; a laudatory or purely descriptive phrase faces absolute-ground objections unless secondary meaning is proved.

Distinctiveness is the gateway; check both inherent and acquired distinctiveness, and search earlier rights.

3. UGANDA / PRACTICE, METHOD AND TRAPS

Uganda's Trade Marks Act and URSB practice implement Paris and TRIPS standards. Madrid System international registration is available for broader protection. Proper classification (Nice) is essential.

Exam trap: assuming every logo is automatically registrable, or ignoring the need to specify goods/services and to clear earlier marks.

Method: assess distinctiveness → check absolute and relative grounds → file correctly classified application → monitor publication for oppositions → maintain use and renewals.

Registration strategy feeds directly into enforcement.

SELF-TEST QUESTIONS

Attempt these before the platform practice quiz.

1. What makes a sign a trade mark?
2. Name two absolute grounds of refusal.
3. What is the effect of registration?
4. How long does a registered mark last?
5. What is passing off?
6. Why is classification important?

Exam tip: Distinctiveness + clearance + correct classification.

CHECKLIST BEFORE YOU LEAVE THIS LESSON

- I can state the main instrument(s) or Cap number.
- I can explain the core rule in my own words.
- I can apply the rule to a short Uganda / regional fact pattern.
- I know the common exam trap for this topic.
- I know how this lesson links to the next module.

Next step: Complete the online practice quiz for this lesson, then continue on the platform.